

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BAKERLY, LLC, *Complainant*

v.

SEAFRIGO USA, INC., *Respondent*.

DOCKET NO. 22-17

Served: April 21, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTIONS FOR ENLARGEMENT OF TIME AND EXPEDITED REVIEW

On April 20, 2023, Bakerly, LLC (“Bakerly”) filed Complainant’s Uncontested Motion for Enlargement of Time to File Brief (“Motion for Enlargement”), and Complainant’s Motion for Expedited Review (“Motion to Expedite”). In the Motion for Enlargement, Bakerly alleges that Respondent Seafrigo USA, Inc. (“Seafrigo”) “produced a spreadsheet providing updated information on 1,037 invoices” on April 14, 2023, and “1,216 PDFs without any citation in the spreadsheet” on April 18, 2023. Motion for Enlargement at 1. It further alleges that being held to the May 3, 2023, due date for its initial brief “would prejudice Bakerly and the late discovery production constitutes good cause for enlargement of time to file the brief.” *Id.* at 2. In the Motion to Expedite, Complainant asserts that expedited review of the Motion for Enlargement is necessary “in order to proceed accordingly with pending deadlines.” Motion to Expedite at 1.

On April 21, 2023, Seafrigo filed a response to Bakerly’s Motion for Enlargement (“Response to Motion for Enlargement”). No response to the Motion to Expedite was received and Seafrigo indicated by electronic mail that it would not file one. Due to the pending briefing deadline, good cause is established to review Bakerly’s Motion for Enlargement, and the Motion to Expedite is **GRANTED**.

Seafrigo does not oppose Bakerly’s motion to enlarge the time to file its initial brief but alleges that the parties had agreed to extend the time to complete the production of documents and to limit the litigation to invoices over \$1000. Response to Motion for Enlargement at 1. Seafrigo further stated, “There are slightly over 1,000 invoices in dispute in this case, all of which were provided by Seafrigo to Bakerly as part of its April 4, 2023 document production (and presumably were in Bakerly’s possession prior to Seafrigo’s production thereof).” *Id.* at 2.

Bakerly’s motion does not mention the parties’ agreement to extend production of documents, or that it already had the invoices in hand, which would appear to be an accurate representation based on Bakerly’s Complaint allegations. At paragraph 12 of the Complaint, Bakerly alleges that “[d]uring the Period Seafrigo invoiced Bakerly a total of \$2,973,475.29 for D&D through March of 2022, (the Period).” Similarly, Bakerly alleges at paragraph 17 of its

Complaint that in December 2021, its “Supply Chain and Accounting staff [conducted searches of] the numerous D&D invoices from Seafrigo.” Complaint at pages 3 and 6. Finally, Bakerly attached many of the disputed invoices as exhibits to the Complaint and specified throughout the Complaint the invoiced amounts it had paid, as well as the invoiced amounts it had not paid during the period in question. *See*, Complaint and Exhibits 6-9.

The close of discovery has been extended twice in this matter: once by Order on Joint Request for Extension of Discovery Deadline (“Order on Joint Request”), and again by Amended Scheduling Order from March 19, 2023 to April 3, 2023. Order on Joint Request at 1; Amended Scheduling Order at 2. The parties’ undated Joint Status Report (“JSR”) received on March 21, 2023, requested an additional 60-days, but good cause was not found to allow such an extension. Amended Scheduling Order at 2. Now, Bakerly alleges that because Seafrigo produced invoices it appears it already had, fifteen days after the end of discovery, Bakerly requires a two-week extension in which to file its initial brief, proposed findings of fact, and appendix. Motion for Enlargement at 2.

While the Motion for Enlargement is not opposed, the reason set forth for the request does not support extending the initial brief due date an additional 14-days. However, it is reasonable to allow Bakerly a short period to assess whether the invoices provided to it are different from the ones in its possession. Accordingly, an additional five days should be sufficient to compare.

Good cause to extend Bakerly’s initial briefing date to May 17, 2023, has not been found, and the parties are hereby **ORDERED** to follow this schedule:

May 8, 2023	Complainant’s brief, proposed findings of fact, and appendix.
May 31, 2023	Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
June 14, 2023	Complainant’s reply brief and responses to proposed findings of fact.

No further motions will be accepted. If any issues arise, they should be raised in the briefs.



Linda S. Harris Crovella
Administrative Law Judge